

Call Report — Nicole & Ginger | Sandra Demotion Strategy

Recording: c9dcc5a9-68b521e-ca2b915f@192.168.37.26-158B(1).wav

Duration: ~11 minutes 21 seconds

Participants: Nicole (COO, Apartment Corp), Ginger (HR/Legal Counsel)

Subject: Sandra's demotion — legal risk analysis, timing, call log cleanup, Valencia Patterson promotion

Executive Summary

Nicole and Ginger are finalizing the plan to demote **Sandra** (a property manager currently on medical leave for a “mommy makeover” — liposuction, 360 body contouring, and Brazilian butt lift). The demotion letter has already been drafted, reviewed by Ginger's colleague Ava (who flagged legal risk), and sent to Todd Menowitz for review. Ginger and Nicole both agree: proceed with the demotion now, while Sandra is on leave, rather than waiting for her return.

The call also covers an urgent side issue: a phone call log in **Property Max** (the property management software) is showing a recorded call between Valencia Patterson and Nicole under Pelican Bay's extension — and Nicole wants it deleted before Valencia (who is being promoted into Sandra's role) sees it, as it contains discussion about Sandra's employment status.

Speaker-Labeled Dialogue

Nicole: “She called me and said, ‘I’m having surgery next Friday. I’m gonna be out a week or two.’ She didn’t give a damn about me, Mark or Todd, any of her tenants, what was gonna become of the two properties.”

Ginger: “I get it. She’s gonna do what she’s gonna do. So you know what? Even if we fill out all the paperwork and dot our I’s and cross our T’s, if she wants to say ‘fuck you,’ she will.”

Nicole: “And this girl, Eva, is from New York. So yes, they do things so much differently in other states.”

Ginger: “You know, and that’s what this whole thing with Gelena is about. They’re trying to try it out of New York because Todd is one of the owners and lives in New York. So they had it moved from Louisiana to New York. This shit would not be going on in Louisiana.”

Nicole: “I didn’t know it went to New York.”

Ginger: “Yes. That’s why it is still going on. EEOC saw, oh, Todd Menowitz, New York. Let’s move it. It’s a conservative judge, thank God, appointed by Trump. But I don’t think it’s gonna make a difference.”

Nicole: “Jury’s gonna decide anyway.”

Ginger: “Bottom line is every employee interaction is a risk. Having employees is a risk. We are weighing the risk of her — either way, we do it while she’s on leave or we don’t do it while she’s on leave. We don’t want her managing the property and we are demoting her. Whether it occurs now or it occurs later, to me the consequence is either she says, ‘Okay, fine, you’re right,’ or she says, ‘Fuck you,’ and she walks.”

Nicole: “Whether any leave, disability or accommodation related protections may apply — she’s kind of referring to this like she had a heart attack or something.”

Ginger: “That, like this woman — but the point is she has a doctor’s note. She’s having a plastic surgery procedure. She had been offered two dates, by the way, one in July and one in August. And she said, ‘No, I wanna do it now.’”

Nicole: “She could argue that she has a deviated septum so she needed to get a nose job. Like there could be some medical reason for her plastic surgery.”

Ginger: “Yeah, she had the mommy makeover.”

Nicole: “I don’t even know what that is.”

Ginger: “I heard her talking about it in Miami because she was talking about it. She’s extremely vain. A mommy makeover — you get liposuction and 360 like around your whole midriff area, and they take stuff out of your mid area and put it in your butt. So she’s getting the butt thing and the stomach thing. And I wanna have it done and I will — one day I will have this done — but I would give Mark and Todd a very long notice in advance and I’m going back to work right away.”

Nicole: “I had major surgery in December of ‘22. I think I missed Thursday, I had it Friday, Saturday, Sunday. I was back to work like the Tuesday.”

Ginger: “You are an idiot. I’m sorry. When you have surgery you cannot be back at work the next day.”

Nicole: “I had a minor procedure and I was out for a week.”

Ginger: “I don’t know what to tell you. I would definitely go back to work right away. You know, Ava’s job is to give us all the risk analysis. But Claude told you something differently and Claude’s pretty smart.”

Nicole: “Yeah. Claude said, ‘You know what? It’s not unusual.’ And it said exactly the same thing.”

Ginger: “It’s not unusual. And it said, ‘Well, no, it’s actually not uncommon to do this while they’re out. And to wait would be — you’re gonna ambush her on day one. Hey, welcome

back. By the way, you've been demoted.' That doesn't work either."

Nicole: "And we don't want her back as a manager and then three weeks later to say, 'Oh by the way, you're demoted.'"

Ginger: "So either way the demotion is happening. This question of — we've removed any reference whatsoever in the letter to her leave. Like this is not connected to the leave. The fact that she gave you no notice is in fact actionable in my opinion, but we removed it so that there would be no hint that it's retaliation for her taking off. She's being demoted for cause."

Nicole: "Yeah."

Ginger: "So you know what? I say she's gonna do what she's gonna do and if it were me I'd rather know now than know the day I get back. I mean, just the fact that she was doing all her personal shit all day while — and had Ethan—"

Nicole: "When the maintenance guys told me that, I was like, 'You know what? Let me have Ethan look.' Why didn't they ever call you before?"

Ginger: "They're like, 'Sandra's never here.' Listen, chain of command. I see it all the time. They're worried about their jobs."

Ginger: "So Valencia was hired as an assistant. Is she gonna be put as the manager?"

Nicole: "Valencia was actually the one that you and I interviewed — the wounded bird — and we left her hanging. She is amazing."

Ginger: "The wounded bird. She's amazing."

Nicole: "By the way, this phone call is going to show up on Valencia's property — Max, can you go in there and delete it?"

Ginger: "Uh, yeah. I would delete all the phone calls that you and I have had on this line. We haven't said anything — well, we're talking about Sandra. I don't want employees to hear a conversation I'm having about another employee."

Nicole: "Oh, you're saying she has access to these calls?"

Ginger: "Well, yeah, on her VMware. She's been, for the most part, working in Sandra's, but I've been treating this like an urgent matter because I want to get Ethan to merge everything as one and her not using Sandra Crump anymore."

Nicole: "Let me just go see if I can delete it. Do I have the ability to delete it? I'm pretty sure I do."

[Nicole logs into Property Max. Navigates to Pelican Bay extension. Finds the call under Valencia Patterson → Nicole. Hides it.]

Nicole: "I see Valencia Patterson to — I don't know why I don't see it, but I don't. Look. Valencia Patterson to Nicole Shrieky."

Ginger: “You’ll see it under Pelican. Now you have to go into hidden because I got rid of it. You can go in and see hidden calls. Active, hidden. See? Now the hidden ones are gonna come up.”

Nicole: “Wow. I’m looking for — I don’t see that. Okay, I think it went away. Maybe I got rid of it. Let me have the guys look at it. But again, I’m asking you — whose extension is it on? Is it just Pelican Bay or is it Valencia also?”

Ginger: “Look on your phone. What extension did I put?”

Nicole: “I’m on my computer. Oh, 258.”

Ginger: “Yeah, so there you go.”

Nicole: “I’ll make sure they delete them.”

Ginger: “Yes, please. I don’t know if that matters, but ultimately it’s only the negative calls that get moved forward. Were these ones that you hid — were they just neutral?”

Nicole: “I didn’t look at all that when I did it.”

Ginger: “All right. I’ll have the guys do it.”

Nicole: “Bye.”

Ginger: “Okay, thanks. Bye.”

Summary of Key Points

Topic	Detail
Sandra's leave	Elective plastic surgery ("mommy makeover" — lipo, 360 contouring, BBL). Offered Jul & Aug dates; chose to go immediately. Gave no notice.
Demotion decision	Proceeding now, while she's on leave. Letter drafted, reviewed by Ava (legal), sent to Todd. Any reference to her leave removed from the letter. Demotion is for cause.
Legal risk (Ava's view)	Flagged leave/disability/accommodation protections as a risk. Recommended caution.
Claude's input	Both Nicole and Ginger consulted Claude independently. Claude agreed: demoting while on leave is not uncommon; waiting to ambush her on day one is worse.
Gelena EEOC case	Case was moved from Louisiana to New York because Todd Menowitz is a NY-based owner. Conservative Trump-appointed judge, but jury will decide.
Valencia Patterson	Being promoted from assistant to property manager at Pelican Bay. Originally interviewed by Nicole and Ginger — described as "the wounded bird."
Property Max call log	A recorded call between Valencia and Nicole appeared in the Property Max log under Pelican Bay (ext. 258). Nicole hid it; Ethan/Brandon to permanently delete it.

Action Items

Who	Task
Brandon / Ethan	Delete all call logs between Nicole and Ginger from Property Max (Pelican Bay, ext. 258); merge Valencia's VMware away from Sandra Crump's account
Nicole	Confirm demotion letter is finalized and ready to send
Ginger	Proceed with demotion delivery

Notable Moments

On mommy makeovers: Ginger explains the procedure in detail — liposuction, 360 body contouring, Brazilian butt lift — then adds: *“I wanna have it done and I will. One day I will have this done.”* Nicole responds that she was back at work four days after major surgery in December 2022. Ginger: *“You are an idiot. I’m sorry.”*

On Claude: Both Nicole and Ginger independently consulted Claude AI about the legal risk of demoting an employee while on leave. Claude told both of them it was not uncommon. Ginger: *“Claude told you something differently and Claude’s pretty smart.”*

On Sandra: *“She was doing all her personal shit all day”* — Ethan was involved in uncovering this. Maintenance staff had been covering for Sandra because they were worried about their jobs.

On Valencia: Described as *“the wounded bird”* — someone Nicole and Ginger interviewed and left hanging. Both agree she is exceptional and the right person for the manager role.